

Bharat Sanchar Nigam Ltd. v State of U.P. — remaining billing and surcharge dispute relegated to CGRF under clause 7.10

High Court of Judicature at Allahabad · Division Bench · 16 January 2023 · Writ-C No. 37321 of 2022 · WRIT - C No. - 37321 of 2022 · **Writ disposed; remaining billing dispute relegated to CGRF under clause 7.10**

HEADNOTE

BSNL sought certiorari against disconnection of its plants (28/29 August 2022) and mandamus for restoration, decision of a 22 September 2022 application, and recasting of 2014–2018 dues for one-time settlement with surcharge waiver. After an 11 January 2023 interim direction that the parties meet, supply was restored. Remaining controversy concerned bills, leviability of surcharge, and adjustment of payments against surcharge. Without expressing any opinion on merits, the Division Bench disposed of the writ with liberty to avail clause 7.10 of the U.P. Electricity Supply Code, 2005 (Consumer Grievance Redressal Forum and Ombudsman).

FACTUAL SUMMARY

Bharat Sanchar Nigam Limited sought quashing of the 28/29 August 2022 disconnection of its plants (notice 8 June 2022; letter 7 October 2022), restoration of supply, a decision on its 22 September 2022 application, and recasting of 2014–2018 dues under the erstwhile tariff for one-time settlement with 100% surcharge waiver. It alleged disconnection despite full payment, disrupting public telephone services. By 16 January 2023 supply had been restored; remaining controversy concerned bills, surcharge, and adjustment of payments against surcharge.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

billing-surcharge-dispute-cgrf-ombudsman

HOLDING

After electricity supply to BSNL had been restored, and without expressing any opinion on merits, the Court disposed of the writ giving liberty to raise remaining disputes on bills, leviability of surcharge, and adjustment of payment against surcharge before the Consumer Grievance Redressal Forum and Ombudsman under clause 7.10 of the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

disputed-bill-relegated-to-cgrf-clause-7.10 After restoration of supply, remaining billing, surcharge and payment-adjustment disputes were left to the clause 7.10 CGRF/Ombudsman route without a merits decision. ¶ 1

alternate-remedy-clause-7.10 Writ disposed on the licensee's statement that clause 7.10 afforded a remedy before the forum and Ombudsman; no opinion on merits. ¶ 1

clause-7.10-forum-ombudsman-route-for-billing-grievances Counsel for the distribution licensee pointed to clause 7.10 as the route to the Consumer Grievance Redressal Forum and Ombudsman for the surviving billing grievances. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILLING, SURCHARGE-LEVIABILITY AND PAYMENT-ADJUSTMENT DISPUTES

Court expressly declined to opine on merits after supply was restored. ¶ 1

NOT DECIDED — RECASTING OF 2014–2018 DUES UNDER THE ERSTWHILE TARIFF AND 100% SURCHARGE WAIVER UNDER ONE-TIME SETTLEMENT

Prayer not adjudicated; petitioner left to clause 7.10. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.